

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

February 20, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. in Committee Room 104 for the purpose of meeting in Executive Session involving personnel matters relating to collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor and Mr. White. Absent: Mr. Laybourn. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy-Fakelman, Deputy City Attorney; Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was not recited due to the absence of a flag.

Mayor Orr advised the meeting would be audio recorded and available on Facebook live and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and that Fire Union representatives were welcome to use Committee Room 104 for the purpose of meeting to caucus.

Spokespersons/representatives for both parties were mutually agreed upon as follows: Union-TJ Haws and Kevin West and the City-Mayor Orr, Dr. Rinne, City Council President, and Michael O'Donnell, City Attorney. It was noted that Dr. Rinne may designate another Councilmember in the event of his absence. It was further agreed that both parties would use either text messaging when returning from executive session or union caucus breaks or utilization of city administrative staff to notify parties.

Michael O'Donnell, City Attorney, advised the Ground Rules presented are the same as agreed upon for the FY 2020 contract negotiations with the exception that anyone displaying disruptive or unruly behaviors will be asked to leave the meeting. Mr. O'Donnell further advised the term negotiation is for 2 years. The City and Union representatives agreed to leave at a 2 year term, noting this could be modified to a 1 year term.

A recess was requested by Union representatives at 6:12 p.m. for the purpose of reviewing presented Ground Rules at 6:12 p.m. The meeting was reconvened at 6:16 p.m. City and Union representatives mutually agreed upon the presented ground rules.

The following negotiation terms were agreed upon by both parties: City will present the first offer, a 5 minute recess on each hour, allow for 30 minute caucus breaks for Union

representatives and for executive sessions by the governing body which can be expanded upon mutual agreement, meetings will be scheduled for 2 hours beginning at 6:00 p.m. and ending at 8:00 p.m. unless otherwise agreed upon and meetings will be held in Council Chambers. Upon further mutual agreement, the following tentative schedule was announced: February 25th, 26th, March 5th, 10, and 12th. It was noted additional meetings could be scheduled or scheduled meetings could be cancelled upon mutual agreement. Mayor Orr confirmed the 30 day negotiation time frame would expire on 03-14-20.

A recess was called by Union representatives at 6:25 p.m. for the purpose of reviewing the City's first contract offer. The meeting was reconvened at 6:54 p.m. City and Union representatives mutually agreed to the following sections as presented: 1, 4, 5, 6, 7, 9, 10, 11, 14, 16, 27, 29, 30, 31, 32, 33, 36, 38, 39, 40, 42, 43, 44, and 45.

Discussion topics included process for exchanging offer acceptance and rejections between parties.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 7:06 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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